

1.

CASE #	CASE NAME	HEARING NAME
CVME2503722	ELSMORE VS BROWN	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling: Grant in part. Grant as to amendments alleged against prior defendants, with 5 days leave to file the amended complaint. Deny as to Duane Denzer. Confirm the MSC on October 8, 2026, and the court trial on November 13, 2026. Pursuant to the court's department rules, all litigants and witnesses may appear remotely.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2401961	WETTELAND V. UNIVERSAL HEALTH	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: Overrule Plaintiffs' Objections. Sustain Dr. Nafiu's Objection Nos. 1-7. GRANT the motion for summary judgment in favor of Defendant, Bolaji A. Nafiu, M.D. and against Plaintiffs.

Defendant, Dr. Nafiu, asserts that he did not breach any duty as established by his medical expert, Dr. Demetriades, who opined that Dr. Nafiu met the standard of care for surgeons practicing in the State of California in 2022 in all respects in the care and treatment provided to Karla Wetteland. (Undisputed Material Fact ["UMF"] No. 32.) Dr. Nafiu performed a complete exam of Karla and ordered all necessary diagnostic testing. (UMF No. 33.) An MRI was ordered to rule a neoplasm out. (UMF No. 34.) Dr. Nafiu properly relied on consults for orthopedic and neurosurgery issues. (UMF No. 37.) Dr. Demetriades also opined that to a reasonable medical probability, Dr. Nafiu did not cause nor contribute to any of Karla's claimed injuries. (UMF No. 41.) Dr. Nafiu also did not contribute or cause Plaintiff's cancer to go undiagnosed in 2022. (UMF No. 42.)

Plaintiffs assert objections to Dr. Nafiu's expert, Demetrios Demetriades, M.D.'s declaration on grounds of lack of foundation, opinion based on improper matter, lack of personal knowledge, hearsay, lack of authentication, improper legal conclusions, and speculation. None of these objections are warranted. Dr. Demetriades is a properly qualified expert in trauma surgery and is familiar with the standard of care. (Dec. Demetriades ¶ 2, Ex. "1".) Dr. Demetriades relies on his expertise and review of materials in this case, including Karla's medical records. "Although hospital and medical records are hearsay, they can be admitted under the business records exception to the hearsay rule", but they must be properly authenticated. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 742.) The medical records are properly authenticated by Dr. Nafiu's counsel, Lawrence D. Wong. (Dec. Wong ¶¶ 4-7, Exs. "C" – "D".)

In addition, an expert opinion must be supported by reasons or explanations. (*Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523-524.) This means that, "an expert's opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value because an expert opinion is worth no more than the reasons and facts on which it is based." (*Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510.) An "expert opinion that is based on speculation or conjecture is inadmissible." (*Mitchell v. Untied Nat'l Ins. Co.* (2005) 127 Cal.App.4th 457, 478.) "Courts will exclude expert opinions based on invalid assumptions, such as on facts without evidentiary support." (*Sanchez v. Kern Emergency*

Med. Transp. Corp. (2017) 8 Cal.5th 146, 155.) Here, Dr. Demetriades has provided his opinions along with reasoned explanations. Therefore, Plaintiffs' Objections are overruled.

Plaintiffs also dispute UMF Nos. 32-34, 37, 41, and 42. (Plaintiff's Response to Separate Statement [PRSS].) As to Dr. Demetriades' opinion on the standard of care, Plaintiffs assert this is a "disputed expert conclusion not a material fact." (PRSS, UMF No. 32.) Plaintiffs assert "Dr. Nafiu breached the standard of care by failing to review Dr. Green's MRI report with due diligence", relied on the report performed without contrast, and was negligent in evaluating the report. (*Ibid.*) Notably, none of Plaintiffs' expert provide this opinion. Instead, it is based on arguments made in the Opposition. As support in disputing UMF Nos. 32-34, and 37, Plaintiffs cite to Karla Wetteland's medical records; and declarations from Dr. Arora, Dr. Cotton, Karla Wetteland, and Dr. Nafiu's deposition transcript. (*Ibid.*) Plaintiffs also dispute the element of causation stating this is a "disputed expert conclusion controverted by Plaintiffs' experts." (UMF No. 41.)

However, Plaintiffs' experts' opinions are objectionable. Dr. Nafiu asserts his own objections to Plaintiff's evidence on grounds of lacks foundation/personal knowledge; hearsay; speculation; and improper expert opinion. Dr. Nafiu objects to the entire declaration of Dr. Arora who relied on evidence that is not before the court including guidelines and advisory opinions. (Obj. No. 1.) More importantly, this declaration was not prepared for this motion. Dr. Arora, a radiologist, opined that *Dr. Green* (also a radiologist) breached the standard of care, not Dr. Nafiu. (Dec. Wispell, Ex. "A", Dec. Arora ¶ 39.) Therefore, the objection is sustained as to Dr. Arora's declaration.

Dr. Nafiu also objects to a portion of Plaintiff Karla Wetteland's declaration on similar grounds. In one instance, Karla improperly opines about her own medical condition and what treatment was required. (Obj. No. 2; Dec. Wetteland ¶ 5, 2:1-4.) This objection is sustained.

Dr. Nafiu further objects to the declaration of Dr. Cotton, like Dr. Arora, for relying on evidence not before the court and failing to disclose that he is not qualified to offer his opinion on Dr. Nafiu's care and treatment (no CV is attached for Dr. Cotton.) (Obj. No. 3.) Dr. Cotton also improperly opined about what Karla's orthopedic expert did without having personal knowledge or stating he had reviewed the orthopedic expert's opinions. (Obj. No. 4.) These objections are sustained. Moreover, Dr. Cotton does not demonstrate he is familiar with the standard of care of any provider who treated Karla, including Dr. Nafiu – a trauma surgeon. Dr. Cotton declares he is a physician in private practice, certified by the American Board of Internal Medicine. He does not declare any expertise in orthopedic surgery or in oncology.

An expert "declaration must contain *facts* showing the expert's qualifications (competency) to express the opinion in question; e.g., facts showing the declarant has the training, experience or necessary skill to render an opinion on the particular matters in controversy." (*Id.* § 10:124.2 citing *Howard Entertainment, Inc. v. Kudrow* (2012) 208 Cal.App.4th 1102, 1107 ["The foundation required to establish the expert's qualification is a showing that the expert has the requisite knowledge of, or was familiar with, or was involved in a sufficient number of transactions involving the subject matter of the opinion"]; see *Salasguevara v. Wyeth Labs, Inc.* (1990) 222 Cal.App.3d 379, 387 ["treating physician's declaration insufficient because no showing he was qualified to express opinion on cause of patient's neurological problem"].) "For example, where a medical malpractice action is based on emergency room care, only experts who have "substantial professional experience" in providing such services "within the last five

hears” are qualified to testify to the standard of care.” (*Id.* § 10:124.3 citing Health & Safety Code § 1799.110(c); see *Petrou v. South Coast Emerg. Group* (2003) 119 Cal.App.4th 1090, 1094 [five-year period measured from the date of alleged malpractice].) Here, Plaintiffs oppose the motion with experts who do not have a similar expertise of Dr. Nafiu. Therefore, Plaintiffs have not sufficiently *demonstrated or established* that their experts are qualified to render the opinions they have offered.

Finally, Dr. Nafiu objects to the declaration of Dr. Van Scoy-Mosher, M.D., on similar grounds for relying on evidence not before the court. (Obj. No. 5.) He also objects to Dr. Van Scoy-Mosher’s opinion that if the sarcoma had been diagnosed in the summer of 2022, and surgery were performed then, it “would have very likely been completely successful” and “required significantly less removal of her spinal structures.” (Obj. No. 6.) Dr. Van Scoy-Mosher also opined on the possible future recurrence of the sarcoma and prognosis. (Obj. No. 7.) The objections are well-taken especially as to speculation and improper expert opinion. Moreover, Dr. Van Scoy-Mosher is a general oncologist. He has not demonstrated experience in or knowledge about performing oncologic surgery or spine surgery to remove cancerous tumors or trauma surgery. Dr. Nafiu’s objections are sustained.

Plaintiffs also assert their own undisputed facts, which include facts about the accident and subsequent medical care, including facts about Dr. Nafiu’s care and treatment of Karla. (Plaintiff’s Additional Material Facts [PAMF] Nos. 1-22.) Some of these facts rely on the declarations of Plaintiffs’ experts, which are objectionable as discussed above. Plaintiffs have not presented expert opinion establishing that Dr. Nafiu breached the standard of care or caused or contributed to Karla’s injuries. To the extent that Plaintiffs claim that expert opinion is not required, this position is untenable in light of the requirement for an opposing party to submit contradictory expert opinion in a medical malpractice action. (*Jambazian v. Borden* (1994) 25 Cal.App.4th 836.) In addition, plaintiff must establish causation within a “reasonable medical probability” based upon competent expert testimony. (*Jamison v. Desta* (2013) 215 Cal.App.4th 1144, 1166-1167; *Jones v. Ortho Pharmaceutical Corp.* (1985) 163 Cal.App.3d 396, 402-403.) Plaintiffs have failed to meet their burden. Therefore, summary judgment is granted in favor of Dr. Nafiu.

4.

CASE #	CASE NAME	HEARING NAME
CVSW2305042	SMITH V. SABEH-AZAR	MOTION TO ENFORCE SETTLEMENT 664.6

Tentative Ruling: Grant the application for enforcement of settlement, pursuant to Code of Civil Procedure section 664.6. Plaintiffs have put forth evidence demonstrating that Defendant has failed to comply with her obligations of the settlement. Accordingly, the Court will enforce the remedies agreed upon by the parties by allowing the parties’ Stipulated Judgment to be filed and entering judgment awarding \$285,302.00 for Plaintiffs’ general damages, plus the fees awarded to Plaintiff, for a total judgment of \$ 417, 328.25. The moving party shall submit the Proposed Stipulated Judgment, consistent with this ruling, within 5 days.

Plaintiffs, Thomas V. Smith and Julia L. Smith (“Plaintiffs”), move to enforce the settlement agreement reached by the parties on August 08, 2025, and to enter judgment thereon. Plaintiffs are residential property owners in Temecula, California, who sued the owner of the adjacent property for trespassing onto Plaintiffs’ property and cutting down trees sitting on their land.